Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1080
Claimant:	Austin Lopez
Adjuster:	Valerie Rodriguez

2023-07-14 - Claim opened for side impact collision at intersection. Insured reports the other vehicle entered the intersection against a red signal and struck the driver's side. Police report requested. Photos of both vehicles obtained from insured. Claimant identified as the driver of the striking vehicle. Claimant is represented by counsel; all communication to go through attorney's office.

2023-07-22 - Spoke with claimant's attorney's office. Confirmed represenattion and requested the medical records, prior treatment history for the lower back, and wage documentation. Advised that liability is under review and no determination has been made. Vehicle inspection scheduled for the insured's vehicle and the claimant's vehicle.

2023-07-30 - Police report received. Officer noted the claimant's vehicle had a visible damage pattern consistent with the reported impact. Traffic camera footage from the intersection reuqested from the municipality. Witness statement from a pedestrian obtained and reviewed; witness states the claimant's vehicle did not stop at the signal.

2023-08-04 - Claimant reports loewr back strain from the collision and has been seen at an urgent care facility. Attorney's office submitted an initial treatment summary. Records show diagnosis of lumbar strain, follow-up with physical therapy recommended. Medical review assigned. Reserve adjusted to reflect injury claim pending the full treatment record.

2023-08-07 - Traffic camera footage received and reviewed. Footage supports the insured's account that the claimant's vehicle entered on a red signal. Liability assessment updated to favor the insured at a high percentage, pending final review by the supervisor. Attorney's office notified that the carrier is evaluating the bodily injury claim and that a settlement position will follow once the physical therapy records are received.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1080
Statement of:	Austin Lopez
Taken by:	Valerie Rodriguez
Date:	2023-07-20

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather not say my full name on the recording, if that's okay. Just know I'm the driver of the vehicle involved.

Q: That's fine. Can you describe where the collision occurred?

A: It was at a four-way intersection in Conroe, Texas. I was going through on a green light, heading east.

Q: And what happened as you entreed the intersection?

A: A pickup coming from the north ran the red light and hit the driver's side of my car. I didn't even see him until he was on top of me. I tried to brake but there wasn't time.

Q: Were you wearing your seatbelt?

A: Yes, I was. The airbags did deploy on my side, though, and the seatbelt locked hard across my chest.

Q: Did you feel any injuries right after the collision?

A: Not right away. I was sore, but I figured it was adrenaline. By that evening my lower back was stiff and aching, and it's gotten worse with sitting or bending.

Q: Have you seen a doctor or other provider for your back?

A: Yes, I went to urgent care the next morning. They diagnosed a lumbar strain and gave me muscle relaxers and a referral to physical therapy. I'm still going to sessions.

Q: Is there anything you'd like to add to your account?

A: Only that I was following the traffic signal and did nothing to cause the crash. I'm willing to provide the medical records you need.

Q: Thank you. This concludes the statement.